



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing one judgment on Tuesday 23 April 2019 and six judgments and / or decisions on Thursday 25 April 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 23 April 2019

Elisei-Uzun and Andonie v. Romania (application no. 42447/10)

The applicants were born in 1975 and live in Târgu-Mureş. They began working as judicial officers at the Mureş County Court in June 2000.

The case concerns access to a court to complain about alleged discriminatory treatment.

In December 2007 Mr Elisei-Uzun and Mr Andonie brought an action in Mureş County Court seeking compensation equivalent to the “loyalty bonus” (*spor de fidelitate*) to which they felt they were entitled in respect of their salary since December 2004. They complained that although they had met the same requirements as all the other judicial and non-judicial court staff who had received the loyalty bonus, they had been excluded by legal provisions from benefiting from it. They brought the action against their employer, the Ministry of Justice and the Ministry of the Economy and Finance.

In February 2008 the County Court allowed the claim and ordered that the applicants be paid compensation for discrimination. The Ministry of Justice and the Ministry of Finance appealed, but in final decision of May 2008 the Court of Appeal dismissed the appeal. It considered that the applicants had proved discrimination. The court relied on the laws regulating “confidentiality bonuses” (*spor de confidențialitate*). Meanwhile, the authorities paid each of the applicants 30% of the compensation due.

In November 2008 the applicants lodged an application for the correction of material errors in the Court of Appeal's decision. They asked that the word “confidentiality” be replaced with the word “loyalty”. The Court of Appeal allowed the application, since the use of the phrase “confidentiality bonus” had stemmed from a technical error and did not affect the reasoning of the judgment.

The Ministry of Justice lodged an extraordinary appeal against the final decision of May 2008. It pointed out that the subject matter of the dispute was not a confidentiality bonus, but rather a loyalty bonus. In October 2009, the Court of Appeal allowed the extraordinary appeal and quashed the final decision. It ruled that the subject matter of the dispute had been wrongly determined as being an entitlement to a confidentiality bonus. That could not be considered as a simple material error. It also observed that the Constitutional Court had declared the relevant provisions of the Anti-discrimination Ordinance to be unconstitutional and concluded that there were no longer any legal grounds to support the applicants' action. It thus rejected the applicants' initial action.

Mr Elisei-Uzun and Mr Andonie lodged several unsuccessful appeals against that decision.

Relying on Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights and Article 1 of Protocol No. 1 (protection of property) to the Convention, the applicants complain that the Court of Appeal's October 2009 decision breached the principle of legal certainty as it had set aside a final and binding judgment which, in addition, had been partially enforced. They further complain, in particular, that their rights under Article 6 § 1 had been breached since the Court of

Appeal in this decision had dismissed their action without allowing them the opportunity to present their case and without giving sufficient reasons for dismissing their claim.

Thursday 25 April 2019

[Ter-Petrosyan v. Armenia \(no. 36469/08\)](#)

The applicant, Levon Ter-Petrosyan, is an Armenian national who was born in 1945 and lives in Yerevan. He was the President of Armenia between 1991 and 1998.

The case concerns his complaint about [the](#) interference with his freedom of assembly, the lack of an effective remedy and his alleged placement under house arrest following the dispersal of a protest rally in March 2008.

In February 2008 Mr Ter-Petrosyan ran in a presidential election as the main opposition candidate. From 20 February onwards, protests about alleged election irregularities broke out, led by Mr Ter-Petrosyan, and took place in particular on Freedom Square in central Yerevan. The rallies attracted at times tens of thousands of people.

The applicant alleges that on the morning of 1 March 2008 the police arrived at Freedom Square, encircled the demonstrators and, without any prior warning, began to attack them and violently beat them. The protesters were quickly pushed out of the square and Mr Ter-Petrosyan was also ordered to leave but he refused. He was then forced into a car and taken to his house, which he was not allowed to leave. The roads to his house were blocked by the police and all vehicles were checked. No one could go in or out of his dwelling without the permission of the special forces.

The rallies continued throughout the city until late at night, involving clashes between protesters and law-enforcement officers and resulting in 10 deaths, many injured and a state of emergency being declared by the President of Armenia.

The Government contests these allegations. In particular, it states that the police forces were attacked by the demonstrators and that Mr Ter-Petrosyan got into a police car voluntarily. He was then taken to his home and did not express any wish to go elsewhere. Police officers were stationed near his home as part of security measures for all people under State protection. The police forces neither prohibited anyone from entering the house nor prevented Mr Ter-Petrosyan from leaving. He expressed the wish at one point to leave the house but did not go anywhere when he was told the security forces would not accompany him.

On 4 March 2008, Mr Ter-Petrosyan's legal representative filed a request with the Constitutional Court, submitting that the applicant was under *de facto* house arrest. The applicant alleges that he was allowed to attend a hearing at the court on 5 March 2008 for one hour but that otherwise his house arrest lasted without interruption until 20 March 2008. The Government rejects the applicant's submissions, in particular it states that after the hearing he asked to be taken home and did not want to leave his house until the state of emergency was lifted on 20 March 2008.

In March 2008 the Constitutional Court dismissed an application by Mr Ter-Petrosyan against the result of the presidential election.

Relying on Article 5 § 1 (right to liberty and security), Article 2 of Protocol No. 4 (freedom of movement), Article 11 (freedom of assembly and association), Article 13 (right to an effective remedy), Mr Ter-Petrosyan complains that he was removed forcibly from Freedom Square, while peacefully assembling, and then placed under house arrest on 1 March 2008 and that he did not have at his disposal an effective remedy in respect of this complaint. Relying on Article 14 (prohibition of discrimination), he complains that he was discriminated against on the grounds of his political opinion.

Alexandru-Mihai Pop and Others v. Romania (nos. 54494/11, 67699/11, and 21251/12)

The applicants, Alexandru-Mihai Pop, Ioan Raita and Enescu-Marin Golea, are Romanian nationals who were born in 1969, 1957 and 1957 respectively. They live in Romania.

The case concerns the requirement for the applicants to pay a pollution tax based on an emergency order (OUG no. 50/2008), for the purposes of registering in Romania the second-hand vehicles they had bought in other European Union countries.

Relying on Article 1 of Protocol No. 1 (protection of property) and Article 13 (right to an effective remedy), the applicants complain of having to pay the tax in question.

V.M. v. the United Kingdom (no. 2) (no. 62824/16)

The applicant, Ms V.M., is a Nigerian national who was born in 1977 and lives in Uxbridge (England, UK).

The case concerns the applicant's complaint about her detention under immigration regulations.

The applicant was placed in detention pending possible removal under immigration rules from August 2008 to July 2011. In 2016 the European Court found a violation of Article 5 § 1 (right to liberty and security) of the Convention related to the period from 19 June 2009 to 14 December 2009 (*V.M. v. the United Kingdom*). The current application concerns 22 July 2010 to 6 July 2011.

She sought judicial review of her detention for that period, which was refused by the High Court and the Court of Appeal. The Court of Appeal found in 2014 that some of the reviews of her detention had been unlawful as they had not taken account of all the available medical evidence. Nevertheless, even properly conducted reviews would not have led to an earlier release.

In 2016 the Supreme Court upheld the Court of Appeal's decision. It also agreed that the period of unlawful detention would only have entitled her to damages of one pound sterling and it had therefore been appropriate to refuse to allow a judicial review to go ahead.

Relying on Article 5 §§ 1 (f) and 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), the applicant complains that her detention was arbitrary as the authorities had failed to act with appropriate "due diligence".

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Thursday 25 April 2019

Name	Main application number
35198/13	Peršteina v. Latvia
66803/17	Mozeris and "Eugenijos ir Leonido Pimonovų Alzheimerio ligos paramos fondas" v. Lithuania
43586/16	Grech and Others v. Malta

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.